

Court No. - 32

Case :- WRIT - C No. - 37469 of 2019

Petitioner :- Mohd. Mubeen Alias Hazi
Mohammad Mubeen

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ganga Bhushan
Mishra

Counsel for Respondent :- C.S.C.,Baleshwar
Chaturvedi

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, *inter alia*, for the following relief:

"Issue a writ, order or direction in the nature of certiorari quashing the impugned final assessment order dated 8.4.2019 (annexure no. 3) passed by respondent no. 2 as well as impugned provisional assessment order dated 23.2.2019 (Annexure no. 1) passed by respondent no.3.

Heard the learned counsel for the petitioner and Mr. Baleshwar Chaturvedi, learned counsel for the Electricity Department and perused the record.

Learned counsel for the petitioner has submitted that against the provisional assessment order dated 23.2.2019, the petitioner filed his objection on 11.3.2019 but the impugned final assessment order dated 8.4.2019 was passed without considering the objection of the petitioner, though the objection of the petitioner was already on record and the impugned final assessment order was passed after **27 days** of filing of the objection of the petitioner, completely overlooking the provisions contained under the U.P. Electricity Supply Code 2005. He further submits that since the objection of the petitioner was already on record when the impugned final assessment order was passed, there was no justification on the part of the respondent no.2 to have passed the said order without considering the said objection and as such the authority concerned has committed manifest illegality while passing the impugned order and therefore the same is liable to be quashed. We find substance in the submission so made by the learned counsel for the petitioner.

In view of the above, the writ petition is allowed. The impugned assessment order dated 8.4.2019 is hereby quashed.

Considering the facts and circumstances of the case and taking a lenient view in the matter, we direct the petitioner to appear on 12.12.2019 at 11.00 A.M. before the Respondent No.2, Executive Engineer along with his objection/representation and adduce his evidence, if any, in support of his contention. The

Respondent No. 2, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of two weeks thereafter.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

It is made clear that in case the petitioner does not appear on the said date fixed, the impugned final assessment order dated 8.4.2019 shall stand revived automatically.

Order Date :- 21.11.2019
MLK